IN THE HIGH COURT OF ORISSA AT CUTTACK

CRLA No.168 of 2023

In the matter of an Appeal under section 374(2) of the Code of Criminal Procedure, 1973 and from the judgment of conviction and order of sentence dated 26th December, 2022 passed by the learned Sessions Judge, Gajapati, Paralakhemundi in S.T. Case No.37 of 2020.

Samuel @ Samiel Palaka @ Mishal ….. ***Appellant***

-versus-

State of Odisha …. ***Respondent***

Appeared in this case by Hybrid Arrangement (Virtual/Physical Mode:

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For Appellant - Mr.B.R.Tripathy (Advocate)

For Respondent - Mr.S.K. Nayak Addl. Govt. Advocate

CORAM:
MR. JUSTICE D.DASH
DR. JUSTICE S.K. PANIGRAHI

DATE OF HEARING :15.05.2023 : DATE OF JUDGMENT: 21.06.2023

D.Dash, J. The Appellant, by filing this Appeal, has attacked the judgment of conviction and order of sentence dated 26.12.2022 passed by the learned Sessions Judge, Gajapati, Paralakhemundi in S.T. No.37 of 2020 arising out of G.R. Case No.50 of 2020 corresponding to Kashinagar P.S. Case No.51 of 2020 of the Court of learned Judicial Magistrate First Class (J.M.F.C.), Kashinagar.

The Appellant (accused) thereunder has been convicted for committing the offence under section-302 of the Indian Penal Code, 1860 (for short 'the IPC') and accordingly, he has been sentenced to undergo imprisonment for life with payment of fine of Rs.10,000/- (Rupees Ten

Thousand) in default to undergo rigorous imprisonment for a period of one (1) year.

2. The prosecution case is that on 29.05.2020 in the afternoon around 12.20 p.m., there was a quarrel between the accused and Dhanunjaya Jena (deceased). During the said quarrel, the accused is said to have dealt a blow on the head of the deceased by means of a lathi. He then fell on the ground. It is further stated that sometime thereafter the accused assaulted the deceased in front of the Office of the Revenue Inspector of the village. It is stated that the accused there gave a blow on the right leg of the deceased by means of an axe. The wife of the deceased (P.W.4) and her daughters (P.W.3 and 10) rushed to the spot and therefrom when they raised shout to rescue the deceased, the accused fled away from the spot carrying the axe. The wife of the deceased (P.W.4) with the help of others then shifted the deceased to Kashinagar Hospital by an Ambulance where the Doctor declared the deceased as dead. She then lodged a written report with the Inspector-in-Charge (I.I.C.), Kashinagar Police Station. The I.I.C. receiving the said report treated that as First Information Report (F.I.R.-Ext.4) and registered the case. He then took up the investigation. The Investigating Officer (I.O.-P.W.12) then examined the Informant (P.W.4) and other witnesses. He also held the inquest over the dead body and prepared his report (Ext.1). The accused being arrested gave recovery of the axe after giving statement to the I.O. (P.W.12) by leading him and others to the place of keeping of the said axe. The dead body of the deceased was sent for Post Mortem Examination upon issuance of necessary requisition. The incriminating articles seized in course of investigation were sent for chemical examination through Court. On completion of investigation, the I.O. (P.W.12) submitted the Final Form

placing the accused to face the Trial for commission of offence under section 302, I.P.C.

3. Learned J.M.F.C., Kasinagar having received the Final Form as above, took cognizance of the said offences and after observing the formalities, committed the case to the Court of Sessions. That is how the Trial commenced by framing the charge for the said offences against the accused.

4. In course of Trial, the prosecution examined in total thirteen (13) witnesses. As already stated, the Informant, who is the wife of the deceased is P.W.1 and her two daughters are P.W.3 and P.W.10. Another witness who is a co-villager and is said to have seen the occurrence has come to the witness box as P.W.11. The witness to the seizure of the axe at the instance of the accused is P.W.6 and another co-villager who had informed P.W.3, 4 and 10 about the occurrence which had taken place near the R.I. Office is P.W.13. The Medical Officers are P.W.7 and 8 and the I.O. has come to the witness box at the end as P.W.12.

The prosecution having led the evidence by examining the above witnesses has also proved several documents, which have been marked Exts.1 to 29. Of those, the important are the F.I.R. (Ext.4) and the Inquest Report as well as the Post Mortem Examination Report which are Ext.1 and 7. The Chemical Examiner's reports has been marked as Ext.28 and 29 respectively.

The plea of defence is denial and false implication. He has, however, not tendered any evidence in support of the defence.

5. The evidence of the Doctor, P.W.7 and his report (Ext.1) reveals that the deceased had sustained lacerated injury of size 5'' x 2'' x 2'' at right popliteal fossa with rupture of muscles and neurovascular bundle

and there was a contusion of the size 1'' x ½'' on the left leg around 10'' below the knee joint as also three numbers of scratch marks on the middle of the chest. P.W.7 has stated that said injuries are ante mortem in nature and the death to be homicidal.

It is stated by P.W.7 that the death is caused due to hypovolemic shock as a result of massive haemorrhage.

The Investigating Officer, P.W.12 having reached the spot had held inquest over the dead body and he too had noticed all these injuries on the body of the deceased and accordingly, he had noted so in his inquest report, Ext.1. With such evidence on record remaining unquestioned, we are in wholly in agreement with the finding of the Trial Court that the nature of death of deceased Dhanunjaya Jena was homicidal.

6. Learned Counsel for the Appellant, from the beginning instead of questioning the finding of the Trial Court as regards the act done by the accused in assaulting deceased, confined his submission on the score that even accepting the prosecution case as it emerges from the evidence, the accused for the said act and role played cannot be held guilty for committing the offence under section-302 of the IPC and at best, it would be one under section-304 Part-II of the IPC. In this connection, he has invited our attention to the depositions of the witnesses who have simply stated to have seen the accused assaulting the deceased in course of quarrel which continued for quite a long time between the accused and the deceased. He further submitted that it is not the case of the prosecution that accused assaulted by any sharp cutting weapon and the injuries are said to be by hard and blunt weapon. He further submitted that as per the evidence of P.W.7, the only injury on the head of the deceased has led to her death, when all other injuries are mere abrasions and lacerations which might have taken place in course of continuous quarrel between two. He

also submitted that the prosecution witnesses is silent as to who triggered the quarrel and it was at what point of time and why in course of quarrel, the accused started assaulting the deceased and what was the reason to immediately do so, being so provoked in any way or not. In view of all these above, he contended that it is a case where the accused, at best, would be liable for commission of offence under section-304 Part-II of the IPC but not under section-302 of the IPC.

7. Learned Counsel for the State contended that it being the evidence on record that it is the accused who had assaulted the deceased continuously and the injury caused by him on the head of the deceased by means of hard and blunt weapon, has resulted the death of deceased, Dhanunjaya Jena, the conviction has to be recorded one under section-302 of the IPC, which the Trial Court has rightly held.

8. Keeping in view the submissions made; we have carefully gone through the judgment passed by the Trial Court. We have also extensively travelled through the depositions of the prosecution witnesses i.e. P.Ws. 1 to 13 and have perused the documents which have been admitted in evidence and marked as Exts. 1 to 29.

9. In order to address the submission of the learned counsel for the Appellant which is now only confined as to categorization of the offence committed by the accused upon acceptance of his role in entirety, as stated by the prosecution witnesses, we feel it apposite to glance at the evidence of the Doctor who had held the Post Mortem Examination over the dead body of the deceased, i.e., P.W.7. He has stated to have noticed lacerated injury of the size of 5'' x 2'' x 2'' at right popliteal fossa with rupture of muscles and neurovascular bundle. He has further stated to have seen a contusion of size 1'' x ½'' on the left leg around 10'' below the knee joint

and three numbers of scratch marks on the middle of the chest. It is his evidence that the death was due to hypovolemic shock as a result of massive haemorrhage. He has found all the internal organs intact, which is stated by him as sufficient to cause the death of a person in ordinary course of nature unless medical intervention is given in proper time. At the same time, he has opined that such injuries are also possible if someone falls with sufficient force on sharp object from a height. In fact, when it is said that there was assault upon the deceased by the accused by means of a lathi, there is no external injury on the head. As regards the happening of the incident, it has been stated by P.W.5 that the accused and deceased were quarreling with each other and there was push and pull for which he too had intervened. It is further stated that he was taking the accused to the village and then the deceased reached there and assaulted the accused by giving blows on his legs by stick and thereafter they had again quarreled.

Cumulatively viewing all these circumstances appearing in the entire evidence as above discussed, we are of the view that the offence could be properly categorized as one punishable under section-304 Part-II of the IPC and thus the accused is liable for commission of offence punishable under section-304 Part-II of the IPC. Accordingly, he is to be visited with the sentence commensurate the act done by him.

10. In the result, the Appeal stands allowed in part. The conviction recorded against the accused under section-302 of the IPC is modified to one under section-304 Part-II of the IPC and consequentially, we are of the considered opinion that the sentence to undergo rigorous imprisonment for a period of seven (7) years with fine of Rs.2,000/- (Rupees Two Thousand) in default to undergo rigorous imprisonment for two months would be just and proper and meet the ends of justice.

11. With the above modification as to the judgment of conviction and order of sentence, the Appeal stands disposed of.

(D. Dash),
Judge.

Dr.S.K. Panigrahi, J. I Agree.

(Dr.S.K.Panigrahi),
Judge.

Himanshu

HIGH COURT
सत्यमेव जयते
ORISSA